

GZ: 2021-0.816.492 dated December 16, 2021 (Case Numbers: DSB-D124.3435 and DSB-D062.968)
[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

BESCHWERDEVORENTSCHEIDUNG SPRUCH

The Data Protection Authority decides on the data protection complaint [Note from the editor: referring to: complaint, appeal against a decision, or official complaint] of the Federal Ministry of the Interior (complainant) dated October 27, 2021, against the decision of the Data Protection Authority dated October 5, 2021, GZ D124.33435, 2021-0.658.855 (challenged decision), as follows:

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The ruling of the challenged decision is amended to read as follows:

1. The complaint of the complainant is upheld, and it is determined that the respondent has violated the complainant's right to information by failing to deliver the information requested on October 19, 2020, via email to the complainant.
2. The respondent is ordered to comply with the complainant's request for information within a period of two weeks by delivering the information to their electronic delivery address.

Legal Basis: § 18 para. 1, § 24 para. 1 and para. 5, § 33 para. 2 no. 2 and § 44 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 2, 8, 21, 23, 28, 30, 37a of the Delivery Act (ZustG), Federal Law Gazette 1982/200 as amended.

BEGRÜNDUNG

A. Submissions of the Parties and Procedural History

1. The now co-participating party and complainant in the initial proceedings, Dr. Sonja A***, stated in her initiating (addressed to the Data Protection Authority) complaint dated December 30, 2020, that she had submitted a request for information to the now complainant Federal Minister for the Interior (BMI) on October 10, 2020. On October 22, 2020, she was informed by the complainant that no delivery could take place at the "delivery point you provided in **** P***hausen, B***straße 4* due to absence from the location." The co-participating party further stated that it was correct that she was registered as absent from the location because she was abroad and no longer had a residence in Austria. She had on

****Application Form**** but explicitly stated that they wished to receive the information via email.

Together with the complaint, the participating party submitted the email correspondence preceding the complaint with the complainant.

2. The now complainant (and respondent in the initial proceedings) stated - as far as relevant, reproduced here - that the participating party had submitted a request for information to him via email dated 10.10.2020. As proof of their identity, the participating party provided a copy of a passport but did not verify their identity using a citizen card. The complainant then processed the request for information from the participating party and arranged for the delivery of the substantive information to the registered address of the participating party via a registered letter. Subsequently, the complainant was informed that the participating party was considered "absent from the locality" at the address they had provided: "**** P***hausen, B***straße 4*". The complainant then requested the participating party via email dated 22.10.2020 to specify a delivery location in accordance with § 2 Z 4 of the Delivery Act or to appoint a delivery representative. In an email dated 09.11.2020, the complainant again reminded the participating party that the delivery of a data protection-related information could only be made with proof of delivery to the recipient's own hands in accordance with § 21 of the Delivery Act or electronically with proof of delivery through delivery systems in accordance with § 28 Abs. 3 Z 1 (approved delivery service in accordance with § 30 of the Delivery Act) and Z 3 (electronic legal traffic in accordance with §§ 89a GOG) as well as in accordance with § 37a second sentence of the Delivery Act. In this context, the complainant also referred to § 5 Abs. 1a of the Regulation of the Federal Minister of Justice on Electronic Legal Traffic (ERV 2006), according to which "fax and email (...) are not permissible forms of electronic legal traffic within the meaning of this regulation." According to §

37a second sentence, the complainant further stated, in the case of delivery to one's own hands, identity must be verified using a citizen card. Since the participating party did not verify their identity using a citizen card, no electronic delivery in accordance with § 28 Abs. 4 in conjunction with § 37a second [Note by the editor: add: "sentence"] of the Delivery Act could take place. The complainant arranged for the delivery of the substantive information via registered letter to the delivery address of the participating party, but they were considered "absent from the locality" at the address they provided. The complainant therefore requests the dismissal of the complaint.

3. The complainant stated in a further submission dated 13.04.2021 that he had made another delivery attempt with proof of delivery to the recipient's own hands at the main residence of the participating party, which has existed since 03.02.2021, "**** R***tal, I***weg *5/*7". As soon as the return receipt is available, the complainant will inform the Data Protection Authority whether the delivery was successful or if the participating party is again considered "absent from the locality." It is undisputed that neither the Data Protection Act (DSG) nor the General Data Protection Regulation (GDPR) necessarily require a personal delivery or a delivery using a citizen card; however, deliveries by authorities are governed by §§ 21 and 22 of the Administrative Procedure Act (AVG). § 21 AVG stipulates that deliveries must be made according to the Delivery Act, and § 22 AVG stipulates that in the presence of important reasons, with proof of delivery...

to be served. In the presence of particularly important reasons or when provided for by law, the service must be made to the recipient's own hands. The complainant ordered in the Data Protection Framework Regulation of May 23, 2018, GZ BMI-LR1200/0074-III/7/a/2018, under point 13.10: "The substantive handling of a request for information must be served to the affected party's own hands ('RSa letter') in accordance with § 21 of the ZustG, in order to prevent violations of the fundamental right to data protection." The complainant assumes the existence of an important reason in the sense of § 22 first sentence AVG, when there is an increased need for proof of service, which is the case when providing criminal law-relevant data in accordance with § 44 DSG and the related possibility of complaint in accordance with § 32 para. 1 no. 4 in conjunction with § 24 DSG. Particularly important reasons in the sense of § 22 second sentence AVG exist in that a service to the recipient's own hands would prevent a potential substitute recipient present at the delivery location—from gaining knowledge of personal criminal law-relevant data of the recipient in the event of the recipient's absence at the delivery location. An electronic service by an Austrian authority may only take place in accordance with Section 3 of the ZustG. Electronic services with proof of delivery are permissible according to § 28 para. 4 ZustG exclusively through delivery systems according to § 28 para. 3 no. 1 and 3 as well as in the case of § 37a second sentence of the ZustG. According to § 37a second sentence ZustG, when delivering with proof of delivery, identity must be verified using a citizen card. However, the participating party did not verify its identity with a citizen card, which is why the complainant was not allowed to transmit the information electronically. The complainant has so far made two delivery attempts to the delivery address of the participating party. The rejection of the complaint (addressed to the Data Protection Authority) is requested.

4. In a supplementary statement dated April 20, 2021, the complainant stated, presenting the postal return receipt, that the substantive information from October 19, 2020, could not be delivered to the participating party because they are considered absent at the address "**** R***tal, I***weg *5/*7." In conclusion, the complainant stated that the principle that the information should be provided in the same form as the request was made only applies if there are no special reasons to the contrary. These exist in the form of § 54 DSG, § 22 AVG, and the ZustG.

5. With the contested decision of October 5, 2021, the Data Protection Authority granted the procedural initiating complaint of the participating party with decision point 1 and found that the complainant violated the participating party's right to information by not exhausting all available measures to serve the information to the participating party. With decision point 2, the Data Protection Authority instructed the complainant to serve the information from October 19, 2020, to the participating party by depositing it with the authority itself in accordance with § 8 in conjunction with § 23 ZustG.

6. In a letter dated October 27, 2021, the appellant filed an appeal against this decision. In summary,

he stated that the contested decision was unlawful for several reasons.

First, the appellant had indeed served the notice by depositing it with the authority: In this context, the appellant referred to the ruling of the Administrative Court (VwGH) dated January 22, 2014, 2013/22/0313, according to which the authority may only make use of § 8 para. 2 ZustG after it has attempted to ascertain a new place of delivery using at least "simple means." In accordance with this case law, the appellant initially attempted to serve the notice dated October 19, 2020, to the then registration address of the involved party in **** P***hausen, B***straße 4*. When the notice was returned to the appellant as unclaimed, with the remark that the involved party was not present at the mentioned address, he, in April 2021, through simple means - by obtaining information from the Central Register of Residents - identified a new place of delivery for the involved party in **** R***tal, I***weg *5/*7, and initiated a new delivery attempt at this address. Only after this second delivery attempt also failed - again due to absence from the location - did he hold the notice in the area of the Federal Ministry of the Interior (BMI) (Department III/7/a) for the involved party to collect. Had the appellant served the notice dated October 19, 2020, immediately after becoming aware of the new place of delivery by depositing it with the authority itself in accordance with § 8 para. 2 in conjunction with § 23 ZustG, he would not have exhausted all available means for a legally compliant delivery. Second, the Data Protection Authority unlawfully assessed a fact - namely the delivery attempt by the appellant in April 2021 - which only occurred after the filing of the complaint on December 30, 2020. With regard to § 34 para. 5 in conjunction with § 24 para. 2 no. 3 DSG, the appellant could only infringe the involved party's right to information in connection with a fact that occurred before the filing of the procedural introductory complaint on December 30, 2020.

Third, the Data Protection Authority did not discuss whether the appellant should have served the notice by simple email, as the involved party had requested.

7. The Data Protection Authority requested the involved party to comment in a letter dated November 5, 2021, as it could be inferred from the appellant's appeal that the appellant had apparently already served the notice in question dated October 19, 2020, by depositing it with the authority itself (in accordance with § 8 para. 2 in conjunction with § 23 ZustG). Since this was a fact or new evidence, the involved party was given the opportunity to comment in accordance with § 10 VwGVG.

8. The involved party stated in a letter dated November 8, 2021, that it had acted in compliance with the law at the time of a valid registration in Austria, as it was obliged to do so.

****A. Postal Arrangement for Absence from Residence****

Otherwise, an officially registered mail item would be considered delivered after the notification of the post has been dropped, regardless of whether it has been collected or if no notification from the post was ever received. Furthermore, her right to information has been violated in that she did not receive the information as requested via email.

****B. Subject of the Complaint****

The subject of the complaint is the question of whether the complainant has violated the co-complainant's right to information by not exhausting all means to deliver the information dated 19.10.2020 to her, which also includes delivery via email.

****C. Findings of Fact****

1. The co-complainant submitted a request for information pursuant to § 44 DSG via email on 10.10.2020, dated 01.10.2020, which should include all police entries, EKIS inquiries (Note: "Electronic Criminal Police Information System"), and GREKO (Note: "Border Control Points"). Along with the request, the co-complainant submitted a copy of her passport. The co-complainant wished to receive the information electronically.

****Assessment of Evidence:**** It is undisputed that the co-complainant submitted a request for information. That the request for information should include all police entries, EKIS inquiries, and GREKO, that the co-complainant wishes to receive the information electronically, and that the co-complainant submitted a copy of her passport is evident from the request for information submitted by the complainant.

2. The complainant processed the co-complainant's request for information with a letter dated

19.10.2020 and arranged for delivery to the registered address provided by the co-complainant in her request for information, "**** P***hausen, B***straße 4*" via registered mail.

****Assessment of Evidence:**** This is evident from the consistent submissions of the parties. That the address "**** P***hausen, B***straße 4*" was provided by the co-complainant is particularly evident from the request for information submitted by the complainant. That the co-complainant was registered at the address "**** P***hausen, B***straße 4*" since 03.09.2020 is evident from the ZMR excerpt (retrieved on 25.11.2020) submitted by the complainant regarding the co-complainant.

3. The post informed the complainant by returning the information that the co-complainant is absent from the address "**** P***hausen, B***straße 4*".

****Assessment of Evidence:**** This is evident from a copy of the returned mail submitted by the complainant, which contains the note "Absent until 9.9.2021".

4. The complainant made another delivery attempt with registered mail to the co-complainant's main residence, which has existed since 03.02.2021, at "**** R***tal, I***weg *5/*7".

****Assessment of Evidence:**** That the co-complainant has been registered at the address "**** R***tal, I***weg *5/*7" since 03.02.2021 is evident from a ZMR excerpt (retrieved on 09.04.2021) submitted by the complainant. That the complainant made another delivery attempt to this address is evident from a copy of the registered mail addressed to "Dr. Sonja A***, I***weg *5/*7, **** R***tal" submitted by the complainant.

5. The post informed the complainant by returning the information that the co-complainant is absent from the address "**** R***tal, I***weg *5/*7".

****Assessment of Evidence:**** This is evident from a copy of the returned mail submitted by the complainant, which contains the note "Absent".

6. The complainant did not send the requested information to the co-complainant via email.

****Assessment of Evidence:**** This follows from the consistent submissions of the parties.

7. After the second unsuccessful delivery attempt due to the co-complainant's absence, the complainant provided the information dated 19.10.2020 by depositing it at the BMI (Department III/7/a) in accordance with § 8 para. 2 in conjunction with § 23 ZustG.

****Assessment of Evidence:**** This is evident from the comprehensible and credible submission of the complainant dated 27.10.2021.

8. The co-complainant is staying abroad indefinitely. Despite the complainant's request, she has not named a delivery representative in Austria.

****Assessment of Evidence:**** This is evident from an email from the co-complainant to the complainant dated 09.11.2020 ("(...) I am abroad and will remain here indefinitely, which could also be several years. There will definitely never be a delivery address in Austria again. There is neither a delivery address nor a delivery representative in Austria (...))." This email was submitted by both the co-complainant and the complainant. That the complainant requested the co-complainant to name a delivery representative is evident from an email from the complainant to the co-complainant dated 09.11.2020 at 08:**, which the complainant has submitted.

****D. From a legal perspective, it follows that:****

1. In the present case, the 3rd main section (in §§ 36 – 61) of the DSG applies, with which Directive (EU) 2016/680 on the protection of natural persons in the processing of personal data by competent authorities for the purpose of preventing, investigating, detecting or...

****Prosecution of Criminal Offenses (hereinafter: Data Protection Policy for the Justice and Interior Sector)****

has been implemented, which was not disputed by the parties involved in the proceedings.

According to § 44 DSG, every affected person has the right to obtain information from the controller about whether their personal data is being processed. In the affirmative case, the affected person has the right to receive the information in accordance with § 44 para. 1 no. 1 to 7 DSG.

The Data Protection Policy for the Justice and Interior Sector further stipulates in its Art. 12 para. 1 last sentence: "The transmission of information occurs in any suitable form, which also includes electronic

transmission. In principle, the controller transmits the information in the same form in which the request was received.”

Art. 12 para. 1 last sentence of the Data Protection Policy for the Justice and Interior Sector has been implemented as follows in § 42 para. 4 last sentence DSG: “If the affected person submits the request electronically, they should be informed electronically if possible, unless they indicate otherwise.”

Additionally, it should be noted that Art. 12 para. 3 last sentence GDPR - although this provision is not applicable here - has the same wording as § 42 para. 4 last sentence DSG.

Now, if a request for information is made - as in the present case - the controller must make all necessary efforts to ensure that the information provided actually reaches the affected person.

2. In this context, the complainant believes it was necessary to deliver the information to their own hands. The complainant justifies this by stating that they are an authority and therefore § 21 AVG applies to them, which stipulates that deliveries must be made according to the ZustG. Furthermore, § 22 AVG also applies to them, the first sentence of which states that a written copy with proof of delivery must be delivered if there are important reasons for this. The relevant second sentence of § 22 AVG states that in the presence of particularly important reasons or when it is legally required, delivery must be made to the recipient's own hands. The complainant stated in the proceedings D124.3435 before the Data Protection Authority that information from the BMI regularly contains criminally relevant data that must be handled with care. The complainant therefore assumes that a “particularly important reason” in the sense of the second sentence of § 22 AVG is present, which is why such information must be delivered by post to their own hands (i.e., by means of a registered letter) in accordance with § 21 ZustG (“Delivery to Own Hands”). If the complainant wishes to deliver electronically instead of by post, they must comply with Section 3 of the ZustG (“Electronic Delivery”). § 28 para. 4 ZustG further stipulates that electronic deliveries with proof of delivery are only permissible through delivery systems in accordance with § 28 para. 3 no. 1 and 3, as well as in the case of § 37a second sentence ZustG. That an electronically provided information of the complainant in accordance with § 44 DSG only with Delivery Confirmation (and not by simple email) must be made, as it follows that the data to be provided are criminally relevant data that must be handled with care. This certainly constitutes an important reason in the sense of the first sentence of § 22 AVG, which obliges authorities to deliver with delivery confirmation. Now, according to § 37a second sentence ZustG, which represents a form of delivery with delivery confirmation, the identity must be proven using a citizen card. Since the involved party did not prove their identity with a citizen card, the complainant was also not permitted to deliver the information from 19.10.2020 to the involved party by simple email.

3. When the complainant states that as an authority they must apply the AVG and subsequently the ZustG, they are generally to be agreed with; however, it should be pointed out that the complainant must also apply the 3rd main section of the DSG: In the 3rd main section of the DSG, the data protection directive for the area of justice and internal affairs has been implemented domestically, which must be applied by the authorities responsible for the prevention, investigation, detection, or prosecution of criminal offenses, including the complainant as the highest “security authority.” Since the AVG and the ZustG are to be applied by administrative authorities in general, but the 3rd main section of the DSG only by the authorities responsible for the prevention, investigation, detection, or prosecution of criminal offenses, the 3rd main section of the DSG constitutes a “lex specialis” in relation to the AVG and the ZustG.

Relevant in this case is therefore § 42 Abs. 4 last sentence DSG: “If the data subject submits the request electronically, they should be informed electronically if possible, unless they indicate otherwise.”

§ 42 Abs. 4 last sentence DSG is to be interpreted in light of Art. 12 Abs. 1 of the data protection directive for the area of justice and internal affairs. As already stated, Art. 12 Abs. 1 requires that the transmission – among other things – of information occurs in any suitable form, which also includes electronic transmission, whereby, in principle, the responsible party transmits the information in the same form in which they received the request.

Thus, Art. 12 Abs. 1 of the directive posits that the transmission of information must, as a principle,

occur in the same form in which the responsible party received the request for information. A deviation from this principle therefore requires justification.

It should be emphasized at this point that the wording of Art. 12 Abs. 1 of the directive, which – as already stated – regulates the processing of "criminal data," goes beyond that of Art. 12 Abs. 1 GDPR: Art. 12 Abs. 1 GDPR stipulates that the transmission of information must occur in writing or in another form, possibly also electronically. According to Art. 12 Abs. 3 GDPR, the data subject must be informed electronically if possible, unless they indicate otherwise.

Unlike Article 12(1) of the Directive, the electronic transmission is thus not established as a principle within the scope of the GDPR. From this, it can certainly be concluded that the Union legislator consciously opted for the principle—rather than merely the option—of transmission in the manner (electronic) in which the controller received the request, within the scope of the Data Protection Directive for the area of Justice and Home Affairs, even though it inherently concerns the processing of "more sensitive information"—namely, information about criminal offenses.

The Data Protection Directive for the area of Justice and Home Affairs does not indicate that the Union legislator had a specific (secured) form of transmission in mind, which is also supported by the wording of Article 12(1), last sentence ("in the same form in which he received the request").

Furthermore, the Austrian legislator does not necessarily require a specific form of delivery in comparable cases, particularly not a personal delivery: According to §§ 47 and 48 VStG, the authority can issue penalty orders in an expedited procedure if the necessary conditions are met. These contain the accusation of a punishable act (administrative offense) and can thus—following the case law of the CJEU (see the judgment of June 22, 2021, C-439/19, para. 77 et seq.)—certainly be classified as "criminal data" within the meaning of Article 10 GDPR and thus also as "criminal offenses" within the meaning of the Data Protection Directive for the area of Justice and Home Affairs (see its Recital 13).

While until the amendment BGBl. I No. 33/2013 penalty orders were to be delivered "to one's own hands" according to § 48(2) VStG, this is no longer provided for since this amendment. The explanations for this (2009 of the annexes XXIV. GP p. 22) state that personal delivery is to be omitted "in the interest of cost savings."

As another example, it is permissible to deliver "sensitive data" under Article 9(1) GDPR by email, as found in § 27(12b) GTelG 2012 (as amended by BGBl. I No. 34/2021).

In summary, it can thus be stated—contrary to the view of the complainant—that neither Union law foundations nor comparable domestic legal foundations necessarily require that information, which may also contain "criminal data" or even special categories of personal data under Article 9(1) GDPR, must be delivered personally and in no case by email.

When the complainant argues that he is bound by § 21 AVG to the ZustG, this cannot be contested. However, he overlooks that the ZustG does not oppose delivery by email (§ 28(3) in conjunction with § 37(1) and § 2 No. 5 ZustG) and—as stated above—the delivery of information does not necessarily have to be carried out according to the provisions of § 22 AVG.

4. The participating party, which submitted its request for information electronically by email and explicitly wished to receive the information electronically, should therefore have received it electronically in accordance with § 42(4), last sentence DSG. Since the complainant did not transmit the information electronically to the participating party, he violated their right to information.

Finally, reference should be made to the provision of § 44(7) DSG, according to which the controller may require additional necessary information to confirm the identity of the person who—like in the present case—submitted a request under § 44 DSG. Additionally, the ruling of the VwGH from July 4, 2016, Ra 2016/04/0014, should be mentioned, which, although it pertains to the old legal situation of the DSG 2000, can be applied to the current legal situation: "The provision of § 26 DSG 2000 has the clearly recognizable purpose of preventing the misuse of the right to information for information gathering by third parties. A client may not transmit data to the information requester—of whom he can only assume at that moment that he is indeed the affected party—without proof of identity, as

otherwise he could violate the data secrecy according to § 15(1) DSG 2000. The proof of identity must be provided in a form that allows the client to verify the identity of the information requester with the person whose data is the subject of the information. In light of the legislative intent and to prevent misuse, a high degree of reliability regarding the proof of identity is required (Note E of September 9, 2008, 2004/06/0221, with references)."

Since the complainant— as established—made two delivery attempts to the participating party's own hands, he apparently had no doubts about the identity of the participating party, which is why the transmission of the information by email to the participating party could have occurred for this reason as well.

Furthermore, it should be noted that according to the case law of the VwGH, personal delivery cannot replace the requirement of prior identity verification (VwSlg. 17.515 A/2008).

Based on the above, a decision was to be made accordingly.